

# STATE OF NEW YORK

1191--B

Cal. No. 42

2025-2026 Regular Sessions

## IN ASSEMBLY

January 9, 2025

Introduced by M. of A. BORES, GLICK, SHIMSKY, LEVENBERG, PAULIN, SIMON, GONZALEZ-ROJAS, MEEKS, SEAWRIGHT, CRUZ, COLTON, WEPRIN, JACOBSON -- read once and referred to the Committee on Codes -- reported and referred to the Committee on Ways and Means -- reported and referred to the Committee on Rules -- ordered to a third reading, passed by Assembly and delivered to the Senate, recalled from the Senate, vote reconsidered, bill amended, ordered reprinted, retaining its place on the special order of third reading -- ordered to a third reading, amended and ordered reprinted, retaining its place on the order of third reading

AN ACT to amend the executive law, in relation to requiring the division of criminal justice services to study the technological viability of personalized firearms

The People of the State of New York, represented in Senate and Assembly, do enact as follows:

1 Section 1. This act shall be known and may be cited as the "safer  
2 weapons, safer homes act".

3 § 2. Section 835 of the executive law is amended by adding two new  
4 subdivisions 12 and 13 to read as follows:

5 12. "Personalized firearm" means a pistol or revolver that incorpo-  
6 rates within its design a permanent programmable feature as part of its  
7 manufacture that cannot be deactivated and renders it reasonably resist-  
8 ant to being fired except when activated by the lawful owner or other  
9 user authorized by the lawful owner.

10 13. "Authorized user" means the owner of a personalized firearm or a  
11 person to whom such owner has given consent to use the personalized  
12 firearm.

13 § 3. The executive law is amended by adding a new section 838-c to  
14 read as follows:

15 § 838-c. Personalized firearms; study of technological viability. 1.  
16 As used in this section, the terms "personalized firearm" and "author-

EXPLANATION--Matter in italics (underscored) is new; matter in brackets  
[-] is old law to be omitted.

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1 ized user" shall have the same meanings as defined in subdivisions  
2 twelve and thirteen, respectively, of section eight hundred thirty-five  
3 of this article.

4 2. The division or a designee shall within two years of the effective  
5 date of this section engage in and complete a study that describes  
6 performance standards, qualifying criteria, and testing protocols neces-  
7 sary to determine the technological viability of personalized firearms  
8 and identifies by make and model firearms that qualify as personalized  
9 firearms.

10 3. The division shall report the results of the study completed pursu-  
11 ant to subdivision two of this section to the governor, the temporary  
12 president and minority leader of the senate, and the speaker and minori-  
13 ty leader of the assembly.

14 § 4. This act shall take effect immediately.